

HOUSE No. 2551

The Commonwealth of Massachusetts

PRESENTED BY:

Andres X. Vargas

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to public health volunteer responders.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Andres X. Vargas</i>	<i>3rd Essex</i>	<i>1/15/2025</i>

HOUSE No. 2551

By Representative Vargas of Haverhill, a petition (accompanied by bill, House, No. 2551) of Andres X. Vargas that the Department of Public Health establish a registry of volunteer personnel to provide health, medical and other services. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2279 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to public health volunteer responders.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 111 of the general laws, as appearing in the 2021 Official Edition, is hereby
2 amended by inserting after section 242 the following section:-

3

4 Section 243. (a) The department shall establish a registry of volunteer personnel (“the
5 volunteer registry”) who are available to provide services, including but not limited to health and
6 medical services. The department may establish requirements for membership in the volunteer
7 registry including but not limited to verification of licensure and completion of training.

(b) The department shall establish a process to identify and credential personnel in the volunteer registry, which may include a requirement for photographic identification and/or Criminal Offender Record Information as defined by section 167 of chapter 6.

(c) The commissioner or his or her designee may activate some or all of the volunteers in the volunteer registry:

(1) during an emergency detrimental to the public health declared by the governor under section 2A of chapter 17;

(2) during a state of emergency declared by the governor under chapter 639 of the acts of 1950, as amended;

(3) during a public health incident that the commissioner determines demands an urgent response;

(4) pursuant to a request from a local public health authority, healthcare facility, when local or regional resources have been or are expected to be exhausted, or

(5) to conduct training and or exercises approved by the commissioner or his/her designee related to the volunteers' ability to respond to potential activation under this subsection.

For the purposes of this subsection, "local public health authority" shall mean any body politic or political subdivision of the commonwealth that acts as a board of health, public health commission, or health department for a city or town and shall include any board of health as defined in section 1 of chapter 111 and any regional board of health or regional health district as defined in section 27B of chapter 111.

28 (d) In the absence of any other similar protections provided by law, whenever activated
29 for duty by the commissioner or his or her designee in accordance with this section, members of
30 the volunteer registry shall be construed to be employees of the commonwealth for the purposes
31 of chapter 258 of the general laws.

32 (e) In the absence of any other similar benefits provided by law, any member of the
33 volunteer registry activated for duty by of the commissioner or his or her designee in accordance
34 with this section who dies or who sustains disability or injury while so activated shall be
35 construed to be an employee of the commonwealth and shall be compensated in like manner as
36 state employees are compensated under the provisions of sections 69 through 75 of chapter 152
37 of the general laws.

38 (f) The department is authorized to promulgate rules and regulations to implement this
39 section.